

Space Force or Space Corps?

Competing Visions for a New Military Service

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In 2018, President Trump requested that the U.S. military restructure its space offices and personnel to create a U.S. Space Force. Since then three competing visions for how the Department of Defense (DoD) should be restructured to better support its national security space enterprise have been crafted: one from the DoD itself and two from either chamber of Congress. This brief compares these three legislative proposals to create a new military service for space.

While not a new concept, the creation of a separate military service for space has gained significant momentum over the past few months. On February 28, 2019, the Department of Defense (DoD) submitted to Congress a legislative proposal to create a new military service for space within the Department of the Air Force called the United States Space Force. Initially Congress was lukewarm on the idea, but the relevant committees took up the issue and held public hearings and private meetings with officials, military professionals, and outside experts to discuss the concept.

In May and June 2019, the Senate and the House Armed Services Committees (SASC and HASC, respectively) passed military space reorganization language in their versions of the fiscal year (FY) 2020 National Defense Authorization Act (NDAA). Both committees address the issue in similar ways, yet with a few key differences.

Principally, the SASC markup is much more detailed on the requirements for the new Space Force. Arguably, the legislative proposal from DoD could be construed as a “blank check,” causing the committee to add several reporting requirements and clear structural language. However, there is a key missing item despite SASC’s detailed structural

language: the actual declaration of a new service being created. The SASC markup never explicitly declares the establishment of a new service of the U.S. military, although it is clearly implied. The current language solely renames the existing Air Force Space Command — the primary organization that houses space personnel and capabilities within the Air Force — to the U.S. Space Force.

The HASC language creating a new military service for space did not make it into the chairman’s mark of the NDAA, but it was added as an amendment to the legislation during the full committee markup. The bipartisan amendment came from congressmen, Jim Cooper (D-TN) and Mike Rogers (R-AL), who proposed a Space Corps in 2017. Unsurprisingly, the amendment looks very similar to the 2017 language that passed the full House but was later taken out in conference. The HASC version places strong emphasis on both career-building within the Space Corps and budget reporting requirements.

The most obvious difference between the SASC and HASC legislation is the name of the new service. SASC supports the name championed by President Donald Trump, the U.S. Space Force, while the HASC calls it the U.S. Space

Corps. However, both envision the organization as a corps-like structure within the Department of the Air Force and a co-equal service to the U.S. Air Force. Neither supports elevating the organization to an independent military department, which is what President Trump originally suggested in June 2018.¹

Unlike the DoD proposal, both SASC and HASC did not include a new top civilian position within the Air Force for space. This is in line with how the Marine Corps is currently structured—with the Commandant of the Marine Corps reporting directly to the secretary of the Navy. Both the SASC and HASC legislation propose a similar structure. Also similar to the Marine Corps, both the SASC and HASC propose that the new space service be led by a four-star military leader, although the names of this new position differ. The administration proposal called the head of the Space Force a chief of staff, while the SASC calls it a commander and the HASC calls it a commandant. The SASC markup also creates a four-star vice commander position, replicating the Marine Corps' model, while the HASC makes no mention of a vice commandant position.

All three legislative proposals add the four-star in charge of the new military service to the Joint Chiefs of Staff (JCS). Both DoD's and HASC's language immediately adds the head of the space service as a representative to the JCS. The SASC markup language, however, defers the new commander to an invite-only role for the first year. The language states "upon the request of the Chairman of the Joint Chiefs of Staff, the Commander of the United States Space Force may participate in any meeting... of an issue in connection with a duty or responsibility of the Commander."² After the first year, however, the commander would become a full member of the JCS.

The relationship between the Space Force and U.S. Space Command (SPACECOM) also stands out in the SASC legislation by requiring the commander of SPACECOM, likely to be Gen. John Raymond, to also act as the commander of the Space Force for the first year. After a year's time, it requires that the positions be separated.³

All three proposals (DoD, SASC, and HASC) make clear that the National Reconnaissance Office (NRO) will not be included in the new military service. While the fate of the NRO is unanimous, the fate of Army and Navy space operations are not. DoD's proposal included space-related personnel and operations from both the Army and Navy, although it deferred specifying which specific organizations would transfer. The HASC amendment walked that back slightly by not including the Army and Navy at the outset,

but requiring the Secretary of Defense to later report to Congress "plans for the transfer or reassignment of military personnel from the space elements of the Armed Forces to the Space Corps."⁴ SASC's proposal outrightly states that only personnel and operations currently belonging to the Air Force will be included in their version of the U.S. Space Force.

Markedly different in the SASC proposal is the elevation of the current principal assistant to the secretary of the Air Force for space to a principal assistant for space acquisition and integration. This new position will coordinate space acquisition efforts by overseeing the Space and Missile Systems Center (SMC), the Space Rapid Capabilities Office (Space RCO), and the new Space Development Agency (SDA). The apparent intent is to coordinate across all space acquisitions and speed decision making processes. In addition, the SASC legislation creates a Space Force Acquisition Council comprised of:

- The Under Secretary of the Air Force;
- The Principal Assistant to the Secretary of the Air Force for Space Acquisition and Integration;
- The Assistant Secretary of Defense for Space Policy;
- The Director of the National Reconnaissance Office (NRO);
- The Commander of the United States Space Command; and
- The Commander of the United States Space Force.

The purpose of the council is to oversee and coordinate space acquisitions amongst all aspects of the national security space enterprise.

While there is much to deliberate in conference, the two Congressional proposals are structurally similar, and it is likely that military space reorganization will be placed in the final version of the FY 2020 NDAA. Below is a table visually comparing the similarities and differences described above. ■

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	DoD Legislative Proposal	SASC FY20 NDAA Markup	HASC FY20 NDAA Amendment
Creates a new military department	No	No	No
Creates a new service within the Air Force	Yes	Yes*	Yes
Creates a new civilian space position in the Air Force	Yes, Under Secretary of the Air Force for Space	No	No
Senior OSD civilian position	No	Elevates Deputy Assistant Secretary of Defense (DASD) for Space to be Assistant Secretary of Defense (ASD) for Space Policy	No
Military leadership	Chief of Staff, four-star Vice Chief of Staff, four-star	Commander, four-star** Vice Commander, four-star	Commandant, four-star
Representation on the Joint Chiefs of Staff	Yes	Yes	Yes
New civil service positions	Yes and gives greater flexibility for recruiting, hiring, and pay for civilians in the Space Force	No, transfers existing billets	No, transfers existing billets
New military positions	Yes, allows the Secretary of Defense to authorize new military positions for the Space Force	No, transfers existing billets	No, transfers existing billets
Includes NRO and other intelligence agencies	No	No	No
Includes Army and Navy space components	Yes	No	Not immediately but requires DoD to submit a report to Congress advising necessity
Includes National Guard and Reserve Components	Includes associated reservists, but left out the National Guard	Yes	Unclear
Mentions SPACECOM	Yes	Yes	Yes
SPACECOM LEADERSHIP	Commander, four-star	Commander, four-star**	Not addressed
Mentions the SDA	No	Yes	Yes
Estimated Budget	Gives DoD authority to transfer funds and establish a headquarters for the Space Force	Intended to be budget neutral	Requires a report on the estimated funding requirements to establish and operate the Space Corps through the FYDP (2021-2025)
New Service Transition Timeline	5 years from enactment	Not addressed	December 30, 2023

* Unlike DoD's legislative proposal or the HASC amendment, the SASC NDAA markup does not overtly state that a new service is being established within the Department of the Air Force.

** For the first year, the commander of U.S. Space Command will also serve as the commander of the U.S. Space Force.

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ENDNOTES

1. Katie Rogers, “Trump Orders Establishment of Space Force as Sixth Military Branch,” *New York Times*, June 18, 2018, <https://www.nytimes.com/2018/06/18/us/politics/trump-space-force-sixth-military-branch.html>.
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3. U.S. Congress, Senate, Armed Services Committee, *Nominations -- Scolese, - Raymond*, 116th Cong., 1st sess., (June 4, 2019), https://www.armed-services.senate.gov/hearings/19-06-04-nominations_--scolese---raymond.
4. U.S. House of Representatives Armed Services Committee, “National Defense Authorization Act for Fiscal Year 2020: Amendment to H.R. 2500,” 116th Cong., 1st sess., 2019, H.R. 2500, 9, https://aerospace.csis.org/fy20_spacecorps_cooper-amendment/.